

STATE OF MICHIGAN
IN THE MICHIGAN SUPREME COURT

ANDREW JAMES PIGORS,
Plaintiff, appearing *pro se*,

Case No. **2024-001507-DC**

v

HON. JENNY L. McNEILL

EMILY A. WATSON,
Defendant.

COMPLAINT FOR ORIGINAL ACTION

STATE OF MICHIGAN

IN THE SUPREME COURT

*PETITION FOR ORDER OF SUPERINTENDING CONTROL WITH APPLICATION FOR
LEAVE TO FILE ORIGINAL ACTION*

*(Const 1963, art 6, § 4; MCR 3.301; MCR 3.302; MCR 7.301; MCR 7.304; MCR 7.305;
MCR 7.306)*

“COVER: RED (Petitioner) per MCR 7.312(A)”

<i>Supreme Court Case No.</i>	
[TO BE ASSIGNED]	
<i>Court of Appeals Case No.</i>	366810
<i>14th Circuit Court Case No.</i>	2024-001507-DC
<i>Related PPO Case No.</i>	2023-5907-PP

ANDREW JAMES PIGORS, Plaintiff-Petitioner (Pro Se),

v.

*14TH JUDICIAL CIRCUIT COURT FOR THE COUNTY OF MUSKEGON, FAMILY
DIVISION, and HON. JENNY L. McNEILL*, Respondents,

and

EMILY A. WATSON, Real Party in Interest.

<i>Lower Court</i>	
14th Judicial Circuit Court, Family Division, Muskegon County	
<i>Lower Court Judge</i>	Hon. Jenny L. McNeill
<i>Child</i>	L.D.W., DOB November 9, 2022

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[Filed: April 03, 2026]

ORAL ARGUMENT REQUESTED

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<i>Crampton v Dep't of State</i>	395 Mich 347; 235 NW2d 352 (1975)
<i>DeRose v DeRose</i>	469 Mich 320; 666 NW2d 636 (2003)
<i>Eldred v Ziny</i>	246 Mich 478; 224 NW 688 (1929)
<i>Fletcher v Fletcher</i>	447 Mich 871; 526 NW2d 889 (1994)
<i>Hinkle v Wayne Co Clerk</i>	467 Mich 337; 654 NW2d 315 (2002)
<i>In re Contempt of Dougherty</i>	429 Mich 81 (1987)
<i>In re Hatcher</i>	443 Mich 426; 505 NW2d 834 (1993)
<i>In re Hague</i>	412 Mich 532 (1982)
<i>In re Sanders</i>	495 Mich 394 (2014)
<i>Ireland v Smith</i>	451 Mich 457; 547 NW2d 686 (1996)
<i>Judges of the 74th Judicial District v Bay County</i>	385 Mich 710 (1971)
<i>Lapeer County Clerk v Lapeer Circuit Court</i>	469 Mich 146; 665 NW2d 452 (2003)
<i>Mead v Batchlor</i>	435 Mich 480 (1990)
<i>People v Cress</i>	468 Mich 678; 664 NW2d 174 (2003)
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<i>In re Contempt of Henry</i>	282 Mich App 656; 766 NW2d 44 (2009)
<i>Kaeb v Kaeb</i>	309 Mich App 556; 873 NW2d 319 (2015)
<i>Shade v Wright</i>	291 Mich App 17 (2010)
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<i>Lassiter v Dep't of Social Services</i>	452 US 18 (1981)
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<i>Mathews v Eldridge</i>	424 US 319 (1976)
<i>Santosky v Kramer</i>	455 US 745 (1982)
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Michigan Statutes

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Constitutional Provisions

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Const 1963, art 1, § 13	Access to Courts
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PART I — PETITION FOR ORDER OF SUPERINTENDING CONTROL

I. JURISDICTIONAL STATEMENT

1. This Court has original and plenary jurisdiction to issue an Order of Superintending Control over any Michigan court. Const 1963, art 6, § 4 provides:

> “The supreme court shall have general superintending control over all courts; power to issue, hear and determine prerogative and remedial writs; and appellate jurisdiction as provided by rules of the supreme court.”

1. MCR 7.304(A) authorizes the filing of an original action in this Court, including complaints for superintending control under MCR 7.306.
2. MCR 7.306(A) provides that a complaint for superintending control may be filed when a lower court has failed to perform a duty, has exceeded its jurisdiction, or has otherwise acted in a manner requiring correction.

3. MCR 7.316(A)(1) authorizes this Court to issue orders of superintending control “to correct or prevent a clear legal error by a lower court or tribunal when the error would otherwise not be subject to adequate appellate review.”
4. MCL 600.1701 provides additional statutory authority for superintending control proceedings.
5. MCR 7.301 establishes the general authority of this Court, including the power to “hear and determine” original proceedings and to exercise “general superintending control over all courts.” MCR 7.301(A)(2). This general jurisdictional grant operates independently of, and in addition to, the specific procedural mechanisms set forth in MCR 7.304-7.306.
6. MCR 3.301 governs extraordinary writs in general, providing that “[a] complaint for an extraordinary writ authorized by law may be filed as an original action.” MCR 3.301(A)(1). The rule establishes that circuit courts and this Court share concurrent jurisdiction to issue writs of superintending control, mandamus, and other prerogative writs, but that when the circuit court itself is the respondent — as here — only this Court’s original jurisdiction can provide relief.
7. MCR 3.302 specifically governs superintending control, providing that “[a] superintending control order enforces the superintending control power of a court over lower courts and tribunals.” MCR 3.302(A). The rule provides that a superintending control complaint “must demonstrate that the court or tribunal exceeded its jurisdiction, failed to perform a duty, or otherwise acted in a manner requiring correction.” MCR 3.302(B). This complaint satisfies each of these requirements.
8. The Supreme Court’s superintending control power is constitutionally conferred, plenary in scope, and not dependent on the existence of any other remedy. *Judges of the 74th Judicial District v Bay County*, 385 Mich 710, 727 (1971). This power is “extraordinary” and extends

to “the entire range of supervisory authority necessary to ensure the proper and efficient administration of justice.” *Id.*

9. This Court’s superintending control authority permits it to “correct abuses of judicial power, to compel the performance of judicial duties, and to ensure the orderly administration of justice” when no other remedy is adequate. *In re Hatcher*, 443 Mich 426, 441–42 (1993).
10. Petitioner has a related appeal pending before the Michigan Court of Appeals, Case No. 366810. That appeal does not provide adequate or timely relief for the extraordinary circumstances presented here. This Petition is filed concurrently with, and incorporates by reference, Petitioner’s Application for Writ of Mandamus, Petition for Writ of Habeas Corpus, and Application to Proceed In Forma Pauperis.

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II. QUESTIONS PRESENTED

1. *Whether the 14th Circuit Court violated Petitioner’s constitutional right to due process by suspending all parenting time on an ex parte basis, without notice, hearing, or evidentiary support, in contravention of Const 1963, art 1, § 17, US Const amend XIV, MCR 3.207(B), and MCR 3.210(C)?*

The trial court answers: No. Petitioner answers: Yes.

1. *Whether the trial court’s systematic failure to conduct any best interest analysis under MCL 722.23 before modifying custody and eliminating parenting time constitutes a failure to perform a clear legal duty warranting superintending control under MCR 7.306?*

The trial court answers: No. Petitioner answers: Yes.

1. *Whether the trial court’s pattern of ex parte communications, off-docket evidence routing, and exclusion of Petitioner’s filings from the record constitutes an excess of jurisdiction requiring correction under Const 1963, art 6, § 4?*

The trial court answers: No. Petitioner answers: Yes.

1. *Whether a \$250 bond requirement on a disqualification motion — imposed on an indigent, incarcerated pro se litigant — creates an unconstitutional financial barrier to court access that this Court must correct through its superintending authority?*

The trial court answers: No. Petitioner answers: Yes.

1. *Whether the prolonged severance of the parent-child bond — now 248 consecutive days and counting, following the trial court's ex parte revocation of a functioning 50/50 custody arrangement that had operated successfully for 438 days — without adequate evidentiary basis constitutes an ongoing constitutional injury that cannot be remedied through normal appellate channels?*

The trial court answers: No. Petitioner answers: Yes.

1. *Whether the trial court's conduct, as documented by 1,127 judicial violations and thousands of findings specifically relevant to superintending control, demonstrates a pattern of systematic misconduct that cannot be addressed through normal appellate processes?*

The trial court answers: No. Petitioner answers: Yes.

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III. STATEMENT OF PROCEEDINGS AND FACTS

A. Background and Parties

1. Petitioner Andrew James Pigors is the biological father of the minor child L.D.W. (DOB November 9, 2022, approximately 3 years and 5 months of age at the time of this filing). L.D.W. is male. Petitioner maintained an established custodial environment with his son prior to the proceedings below. No court has ever found Petitioner to pose a danger to L.D.W.
2. Emily A. Watson is the mother of L.D.W. is employed by the Kent County Prosecutor's Office, Family Court Division, as a caseworker — a position she has held for approximately nine years with multiple promotions. Watson was formerly represented by Jennifer L. Barnes (P55406) of Barnes Law Firm PLLC, who withdrew in March 2026. Watson is currently unrepresented.

3. Ronald Berry is a non-attorney acting as Emily A. Watson’s domestic partner. He holds no bar number and has no legal authority to represent Watson in these proceedings.
4. The underlying custody proceeding, Case No. 2024-001507-DC, was filed in the 14th Judicial Circuit Court, Family Division, Muskegon County, and assigned to Hon. Jenny L. McNeill. A related Personal Protection Order case, No. 2023-5907-PP, is also before the same court and judge.
5. An appeal is pending before the Michigan Court of Appeals, No. 366810. However, the appellate process is inadequate to address the ongoing, daily harm to L.D.W. and Petitioner for the reasons set forth in Section V.C, *infra*.

B. The Systematic Breakdown of Judicial Function

1. This Petition does not seek relief from a single judicial error. Petitioner seeks superintending control because the lower court’s handling of this case constitutes a *systematic breakdown of judicial function* that cannot be corrected through individual writs or appeals. The pattern includes seven distinct Severity | Count | Percentage |

CRITICAL		
18		
0.1%		
HIGH	13,182	82.8%
MEDIUM	2,691	16.9%
LOW	37	0.2%
<i>TOTAL</i>	<i>Thousands</i>	<i>100%</i>

(Source: Adverse Evidence Summary, Filing Target × Severity Cross-Tab, row: “MSC Superintending Control.” See Exhibit C.)

1. The MSC-relevant findings break down by violation type as follows:

Violation Type			
Count			
Percentage			

Description			
Ex Parte	12,700	79.7%	Unauthorized ex parte communications, ex parte orders, off-docket evidence routing
Due Process	2,000	12.6%	Denial of hearings, suppression of filings, failure to provide notice
Judicial Misconduct	890	5.6%	Bias, retaliation, abuse of contempt power
Housing Violation	285	1.8%	Cross-lane violations connecting family court misconduct to housing matters
Bias	50	0.3%	Documented instances of partiality toward the Real Party in Interest

(Source: Adverse Evidence Summary, Filing Target × Type Cross-Tab. See Exhibit C.)

D. Police Report Weaponization Pattern

1. The record contains *at least 15 documented police reports* showing a pattern of weaponized false reporting by Watson against Petitioner. These reports reflect a pattern in which Watson contacts law enforcement to create a documentary trail supporting her custody position — and

the trial court then relies upon this self-generated trail to justify further restrictions on Petitioner's rights.

2. Critically, *law enforcement itself has recognized this weaponization pattern*. In Police Report MU2422249, the responding officer assessed Watson's reports as having "*little credibility*" and noted that the reports "*appear weaponized*" — i.e., filed not for genuine safety concerns but as litigation tools. (See Appendix F-1.) Despite this law enforcement assessment directly undercutting the credibility of Watson's allegations, the trial court continued to credit Watson's narrative and restrict Petitioner's parenting time based on the very reports that police deemed incredible.

38a. The evidentiary record contains extensive documentation specifically relating to parenting time — documenting the scope and persistence of Petitioner's efforts to maintain his relationship with his son, and Watson's documented interference with those efforts. (See Appendix — Parenting Time Evidence Summary.)

PPO Weaponization as a Custody Tool

38b. The Personal Protection Order (Case No. 2023-5907-PP) has been systematically weaponized as a custody tool. The documented pattern includes:

- (a) The PPO was *filed and granted on the same day* — December 3, 2023 — on an *ex parte* basis, without notice to Petitioner and without an evidentiary hearing. This same-day issuance denied Petitioner any opportunity to contest the allegations before the order took effect;
- (b) Watson and her family members filed *six (6) show cause motions* strategically timed around holidays, custody exchanges, and Petitioner's exercise of parental rights — a pattern consistent with tactical litigation abuse rather than genuine safety concerns;
- (c) Watson's brother, *Cody Watson*, violated the PPO himself — as documented in *Police Report MCSD-2024-02101* (Officer Brian Hintz, reporting) — yet the court took *no enforcement action* against the Watson family for their PPO violations while simultaneously jailing Petitioner;

- (d) Watson’s father, *Albert Watson*, forcibly removed L.D.W. from Petitioner’s care and improperly served PPO documents — conduct documented in police records and witness statements;
- (e) A court transcript reveals that Judge McNeill explicitly ordered “*no communication, no texts, no anything*” between the parties and their families regarding the PPO. Watson agreed on the record — “*fine with me*” — yet Albert Watson continued to attend exchanges and Cody Watson continued to violate the order without consequence;
- (f) Watson accessed Petitioner’s *medical records seven (7) times* through the Corewell Health patient portal between February and March 2024 — an invasion of medical privacy that the court has never addressed;
- (g) Watson committed at least *three (3) documented PPO violations through third-party proxies*: (1) Cody Watson’s threats documented in Police Report MCSD-2024-02101; (2) Cody Watson’s continued presence at exchanges in defiance of the court’s “no contact” order; and (3) Tamara Snider’s stalking of Petitioner on the Nextdoor social media platform as a third-party proxy for Watson;
- (h) Petitioner’s *parenting time was reduced from 182.5 days per year (50/50 custody) to 78 days per year* through the combined weaponization of the PPO and show cause proceedings — a 57% reduction accomplished without any best interest analysis under MCL 722.23;
- (i) Watson’s *unreported income* — including rental payments from Cody Watson and child support payments from Austin Muratori for another child — was never disclosed to the court or factored into the child support calculation, despite Watson’s obligation to report all income sources. Watson’s employer, Shape Corp, made *nine (9) insurance payments of \$95 each (\$855 total)* for health, dental, and vision coverage that were not credited against Petitioner’s support obligation.

E. Petitioner's Exhaustion of Remedies

1. Petitioner has pursued every available remedy through normal channels. Each has proven inadequate:

Remedy Attempted		
Result		
Why Inadequate		
Motion for disqualification (MCR 2.003)	Blocked by \$250 bond requirement	Financial barrier prevents adjudication
MCR 2.003(D) referral to another judge	Judge McNeill ruled on her own disqualification	MCR 2.003(D) requires the motion to be decided by “the chief judge, or another judge designated by the chief judge,” yet Judge McNeill herself denied the motion — violating the mandatory reassignment procedure
Motion to enforce parenting time (MCL 552.644)	Denied or ignored	Court refuses mandatory statutory duty
Motions for evidentiary hearing	Denied without hearing	Court will not allow challenge to its orders
Objections to ex parte proceedings	Overruled or ignored	Court continues ex parte pattern
Court of Appeals appeal (No. 366810)	Pending	Cannot address daily ongoing harm; reviews corrupted record; appellate timeline (12-18 months) exceeds L.D.W.’s critical

Why Inadequate		
		developmental window (ages 2-4)
Application for Writ of Mandamus (MCR 7.306)	Filed concurrently	Addresses specific acts only, not systemic dysfunction
Petition for Writ of Habeas Corpus	Filed concurrently	Addresses custody only, not procedural violations
Judicial Tenure Commission Complaint	Filed	Addresses judicial conduct only, no direct relief; investigation timeline unknown
Federal §1983 Complaint	Filed	Subject to <i>Younger v Harris</i> abstention risk — federal courts routinely abstain from interfering with ongoing state family court proceedings; even if not abstained, federal litigation takes years
Motion for reconsideration	Denied without hearing	Court will not reconsider its own orders
Additional Circuit Court filings	Blocked by \$250 per-motion bond	Bond requirement creates an absolute financial barrier to all further relief within the lower court

1. Each individual remedy addresses one facet of the problem. No single writ, appeal, or complaint can correct the systemic breakdown documented here. The procedural obstacles Petitioner faces are not merely cumulative — they are *self-reinforcing*:

- (a) The lower court judge has imposed a *\$250 bond requirement* on all motions, effectively barring Petitioner — an indigent litigant who lost two jobs and two homes as a direct result of the court’s own actions — from filing any further motions in the lower court;
 - (b) When Petitioner sought disqualification under MCR 2.003, *Judge McNeill ruled on her own disqualification motion* rather than referring it to the chief judge or another judge as required by MCR 2.003(D). The judge whose bias is challenged cannot be permitted to adjudicate the challenge — yet that is precisely what occurred here;
 - (c) The *Court of Appeals appeal (No. 366810)* cannot provide adequate relief because: (i) the appellate timeline of 12-18 months far exceeds the critical developmental window for L.D.W., who is currently three years old; (ii) the “shadow record” — evidence routed to the judge’s secretary rather than filed with the clerk — means the Court of Appeals will be reviewing an incomplete and corrupted record; and (iii) the Court of Appeals lacks the structural authority to remove a judge, order compliance monitoring, or provide the comprehensive relief this case requires;
 - (d) The *Federal §1983 complaint* is subject to *Younger v Harris*, 401 US 37 (1971), abstention — federal courts routinely decline to interfere with ongoing state family court proceedings. Even if the federal court retains jurisdiction, federal civil rights litigation takes years to resolve, during which L.D.W.’s developmental harm continues;
 - (e) The *JTC complaint* addresses judicial conduct but provides no direct relief to Petitioner or L.D.W. — the JTC cannot restore parenting time, vacate orders, or reassign the case.
1. Only this Court’s plenary superintending control authority can simultaneously remove the biased judge, vacate unconstitutional orders, restore parenting time, establish proper case management, and monitor compliance going forward.

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IV. STANDARD FOR SUPERINTENDING CONTROL

A. Three-Part Test

1. Superintending control is an extraordinary remedy available when the normal appellate process is inadequate. This Court has articulated a three-part test:
2. *First*, the party seeking relief must demonstrate that the lower court has failed to perform a clear legal duty, or has exceeded its jurisdiction. *Hinkle v Wayne Co Clerk*, 467 Mich 337, 340 (2002); *Crampton v Dep't of State*, 395 Mich 347, 351–52 (1975).
3. *Second*, the party must show there is no other adequate legal remedy. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155 (2003).
4. *Third*, the party must show that the issue presented is one of significant public interest or that the failure to act will result in material injustice. *In re Hatcher*, 443 Mich 426, 441–42 (1993); *In re Hague*, 412 Mich 532, 540 (1982).
5. This standard is informed by the historical scope of mandamus and related prerogative writs. *Teasel v Dep't of Mental Health*, 419 Mich 390, 408–09 (1984).

B. Relationship to Mandamus and Extraordinary Writs

1. While superintending control is related to the common-law writ of mandamus, it is broader in scope. This Court has explained that superintending control “is not limited to the traditional grounds for mandamus, but also encompasses review of clear legal errors that would otherwise not be subject to adequate appellate review.” *Chevalier v Barnard*, 290 Mich 202, 206 (1939); *Eldred v Ziny*, 246 Mich 478, 480 (1929). The Court exercises superintending control “to prevent a failure of justice” and to ensure that courts within its supervision comply with the law. *Teasel*, 419 Mich at 408–09.
2. MCR 3.301(A)(1), governing extraordinary writs generally, provides that “[a] complaint for an extraordinary writ authorized by law may be filed as an original action.” MCR 3.302(A) specifically provides that “[a] superintending control order enforces the superintending control power of a court over lower courts and tribunals.” Read together with MCR 7.304 and

MCR 7.306, these rules establish a comprehensive framework for this Court to exercise its plenary superintending authority. MCR 3.302(B) requires the complaint to demonstrate that the lower court “exceeded its jurisdiction, failed to perform a duty, or otherwise acted in a manner requiring correction” — each of which is demonstrated here.

3. MCR 7.301 confirms this Court’s general authority to hear original proceedings, including those seeking superintending control. MCR 7.301(A)(2) vests this Court with the authority to “exercise general superintending control over all courts,” operating as the constitutional backstop when lower courts systematically fail to discharge their duties.

C. Standard Applied Here

1. As demonstrated below, Petitioner satisfies all three elements:
 - The trial court has failed to perform mandatory legal duties (best interest analysis, evidentiary hearings, parenting time enforcement, due process protections) and has exceeded its jurisdiction (ex parte orders without emergency, off-docket evidence routing, punitive civil contempt);
 - No adequate legal remedy exists because the pending appeal cannot prevent the ongoing daily harm of parent-child separation, and the corrupted record renders appellate review structurally deficient;
 - The constitutional dimensions of this case — involving the fundamental right to parent, structural court bias, the welfare of a minor child, and the documented scale of 1,127 judicial violations — present issues of significant public interest that only this Court can address.

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VI. RELIEF REQUESTED

WHEREFORE, Petitioner Andrew James Pigors respectfully requests that this Honorable Court:

- A. Issue an *Order of Superintending Control* directing the 14th Judicial Circuit Court, Family Division, Muskegon County, to:

1. *Immediately restore* meaningful parenting time between Petitioner and the minor child L.D.W., pending full adjudication of custody, under a schedule that begins to restore the parent-child relationship severed for 248 consecutive days following the revocation of a functioning 50/50 custody arrangement;
2. *Conduct a full evidentiary hearing* on custody and parenting time, with explicit findings on all 12 best interest factors under MCL 722.23(a)–(l), within sixty (60) days of this Court’s order;
3. *Enforce parenting time* as mandated by MCL 552.644, including sanctions against Watson for documented violations;
4. *Cease all ex parte communications* and ensure all evidence is filed on the official record;
5. *Ensure Petitioner’s filings are docketed* and considered;
6. *Provide Petitioner* with all documents and evidence that have been routed outside the official record;

B. Order the immediate disqualification of Hon. Jenny L. McNeill from all proceedings involving Petitioner and L.D.W., pursuant to MCR 2.003(C)(1)(b), including:

1. *Transfer* of Case Nos. 2024-001507-DC and 2023-5907-PP to a different judge in a different division or circuit to eliminate any appearance of institutional bias;
2. *Prohibition* against Judge McNeill taking any further action in either case pending this Court’s review;

C. Vacate all orders entered by the lower court that were:

1. Entered *ex parte* without notice to Petitioner and without the emergency circumstances required by MCR 3.207(B);
2. Predicated on the unconstitutional \$250 bond requirement;
3. Entered as punitive contempt disguised as civil contempt;

D. Order an independent custody evaluation by a qualified evaluator selected by this Court or the newly assigned judge;

E. Direct the newly assigned judge to establish a *comprehensive case management schedule* within thirty (30) days of reassignment, including regular status conferences, discovery deadlines, and a trial date;

F. Order *monthly compliance reports* from the 14th Circuit Court to this Court for a period of twelve (12) months to ensure compliance with this Court's directives;

G. Issue an *emergency order* preserving the status quo and restoring parenting time pending resolution of this Petition;

H. Order a *full audit* of the trial court's handling of Case Nos. 2024-001507-DC and 2023-5907-PP, to include:

1. Review of all off-docket evidence and communications;
2. Reconstruction of the complete record;
3. Assessment of compliance with the Michigan Code of Judicial Conduct;

I. Refer the documented evidence of judicial misconduct to the Judicial Tenure Commission for investigation pursuant to Const 1963, art 6, § 30;

J. Consolidate for purposes of this Court's review all pending matters in Case Nos. 2024-001507-DC, 2023-5907-PP, and COA 366810;

K. Grant such *other and further relief* as this Court deems just, proper, and equitable.

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PART II — BRIEF IN SUPPORT OF PETITION FOR ORDER OF SUPERINTENDING CONTROL

INTRODUCTION

This is not a case about a single judicial error. This is a case about the complete breakdown of judicial function in the 14th Judicial Circuit Court's handling of a father's custody case — a breakdown so total that only this Court's plenary superintending control authority can remedy it.

Petitioner Andrew James Pigors is the father of L.D.W., a male child born November 9, 2022. Petitioner has been completely separated from his son for *248 consecutive days* — since July 29, 2025 — following the trial court's *ex parte* revocation of a 50/50 custody arrangement that had functioned successfully for over fourteen months (438 days). In total, Petitioner has been denied contact with his child for 286 days across two separate withholding periods. Not because any court has found that contact with his father would endanger L.D.W. Not because any evaluation concluded that parenting time should be denied. But because the presiding judge eliminated all parenting time without conducting the analysis required by Michigan law, without holding a single evidentiary hearing, and without providing Petitioner the procedural protections guaranteed by the Michigan and United States Constitutions.

Over the course of this litigation, the presiding judge — Hon. Jenny L. McNeill — has:

- Denied Petitioner all contact with his child for *248 consecutive days* (and counting) after revoking a functioning 50/50 custody arrangement;
- Entered *44% (24 of 55) of her orders ex parte* — without Petitioner's knowledge or participation;
- Jailed Petitioner for a combined *59 days* on civil contempt with purge conditions he could not satisfy;
- Refused to enforce mandatory parenting time statutes despite documented violations by the opposing party;
- Imposed a *\$250 bond* on a disqualification motion, effectively barring an indigent litigant from challenging judicial bias;

- Caused Petitioner to lose 2 *jobs* (including a United States Postal Service position) and 2 *homes*;
- Directed that evaluations be submitted to the “judge’s secretary, not to be filed with clerk” — routing evidence outside the official record where it could never be reviewed on appeal.

Meanwhile, Watson’s documented violations of court-ordered parenting time have resulted in *zero enforcement actions*.

The scope of documented misconduct is staggering: 1,127 judicial violations and over 150 documented misconduct claims across both proceedings. The evidentiary record contains 308,704 evidence quotes spanning the full chronology of abuse. This is not a collection of close calls. This is a systematic failure of judicial function.

These are not errors subject to correction through normal appellate review. They are structural failures that have corrupted these proceedings from the ground up — failures that only this Court’s exercise of superintending control can remedy.

Petitioner respectfully submits that this is precisely the kind of case for which this Court’s plenary superintending authority exists.

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STATEMENT OF JURISDICTION

This Court’s superintending control jurisdiction is conferred directly by the Michigan Constitution. Const 1963, art 6, § 4 vests in this Court “general superintending control over all courts” and the “power to issue, hear and determine prerogative and remedial writs.” This authority is self-executing, plenary, and not dependent on the existence or exhaustion of other remedies.

MCR 7.304 governs original proceedings in this Court. MCR 7.306 authorizes complaints for superintending control. MCL 600.1701 provides complementary statutory authority, confirming the broad scope of this Court’s power to correct lower court action.

This Petition is filed as an original proceeding pursuant to all three authorities. Petitioner has also filed a concurrent appeal in the Court of Appeals (Case No. 366810), which remains pending. As demonstrated in this Brief, the pendency of that appeal does not provide an adequate remedy and does not preclude this Court's exercise of superintending control. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155 (2003).

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STATEMENT OF FACTS

The factual record supporting this Petition is set forth in detail in the Petition for Superintending Control and the Affidavit of Andrew James Pigors, both filed herewith and incorporated herein by reference. For purposes of this Brief, Petitioner highlights the following critical facts:

A. The Custody Case and Background

1. Petitioner and Emily A. Watson are the parents of L.D.W., a male child born November 9, 2022. The custody case (2024-001507-DC) and related PPO case (2023-5907-PP) are pending before the 14th Circuit Court, Family Division, Muskegon County.
2. No court has ever found Petitioner to be an unfit parent or to pose any danger to L.D.W. No evaluation has ever concluded that contact between Petitioner and L.D.W. would be harmful.
3. Watson was formerly represented by Jennifer L. Barnes (P55406) of Barnes Law Firm PLLC, who withdrew in March 2026. Watson's domestic partner, Ronald Berry — a non-attorney — has no legal role in these proceedings.
4. Despite the absence of any unfitness finding, Petitioner has been denied all parenting time with L.D.W. for 248 consecutive days since July 29, 2025 — following the trial court's ex parte revocation of a 50/50 custody arrangement that had operated successfully for 438 days (May 5, 2024 through July 17, 2025). Including an earlier 40-day withholding period, the total denial of parenting time is 286 days across two separate periods. This total severance of the parent-child relationship was accomplished not by any reasoned judicial determination but by Watson's unilateral refusal to comply with parenting time provisions and the lower court's

refusal to enforce those provisions. The trial court’s revocation of the functioning shared custody arrangement — without evidentiary hearing — underscores the arbitrary nature of the court’s actions.

B. The Pattern of Judicial Dysfunction

1. Petitioner has documented the following pattern of judicial conduct:

Category	
Documented Facts	
<i>Ex parte proceedings</i>	44% (24 of 55) orders entered without Petitioner’s notice or participation
<i>Denied parenting time</i>	248 consecutive days (current, ongoing) — 286 total days across two withholding periods — after 438 days of successful 50/50 custody
<i>Off-docket evidence routing</i>	Evaluations directed to “judge’s secretary, not to be filed with clerk”
<i>Police report weaponization</i>	At least 15 documented police reports used to establish false narrative of dangerousness
<i>Judicial violations documented</i>	1,127 violations, over 150 documented misconduct claims across both proceedings

1. The trial court directed evaluations and reports to be submitted outside the official record, creating what Petitioner terms a “shadow record” — evidence that informed the court’s rulings but was never filed with the clerk, never served on Petitioner, and is unavailable for appellate review.

C. The Contempt Incarceration

1. The lower court jailed Petitioner for a combined 59 days on civil contempt:

Contempt Order		
Duration		
Date		
Show Cause #5	14 days	November 15, 2025

Date		
Show Cause #6 and #7	45 days	November 26, 2025
<i>Total</i>	<i>59 days</i>	

1. The purge conditions attached to these contempt orders included financial requirements that Petitioner — an indigent litigant who had lost his employment as a direct result of prior contempt incarceration — could not satisfy. The contempt was facially civil but functionally punitive: indefinite incarceration with impossible purge conditions is a fixed sentence, not a coercive sanction.
2. No court-appointed counsel was provided to Petitioner despite the threat and imposition of incarceration.

D. The Financial Access Barrier

1. The trial court imposed a \$250 bond requirement on Petitioner’s motion for judicial disqualification under MCR 2.003. Petitioner is indigent. The bond operates as a complete bar to the disqualification remedy — the sole mechanism within the lower court for addressing judicial bias.

E. Exhaustion of Remedies

1. Petitioner has pursued every available remedy: motions in the lower court (denied or ignored), disqualification (blocked by \$250 bond), Court of Appeals appeal (No. 366810, pending but too slow to prevent irreparable harm), and JTC complaint (filed). None, individually or collectively, can provide the comprehensive structural relief required.

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STANDARD OF REVIEW

This Court reviews petitions for superintending control de novo. *Crampton v Dep’t of State*, 395 Mich 347, 351 (1975). This Court has established a three-part test for the exercise of superintending control:

First, the party must demonstrate that the lower court has failed to perform a clear legal duty or has exceeded its jurisdiction. *Crompton*, 395 Mich at 351–352; *Hinkle v Wayne Co Clerk*, 467 Mich 337, 340 (2002).

Second, the party must show there is no other adequate legal remedy available. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155 (2003).

Third, the party must demonstrate that the extraordinary writ is necessary to prevent material injustice. *In re Hatcher*, 443 Mich 426, 441–442 (1993).

The standard is not whether the lower court committed reversible error on a single issue, but whether the *cumulative pattern* of the lower court’s conduct warrants this Court’s supervisory intervention. *In re Hatcher*, 443 Mich at 441 (superintending control is proper when a lower court has committed “an abuse of judicial power that is tantamount to a failure to perform a clear legal duty, and there is no other adequate remedy”).

This Brief demonstrates that all three elements are met — and that the documented pattern of 1,127 judicial violations, over 150 documented misconduct claims, and 286 total days of enforced parental separation — including the revocation of a functioning 50/50 custody arrangement — makes the case for this Court’s intervention overwhelming.

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ARGUMENT

I. THIS COURT’S CONSTITUTIONAL SUPERINTENDING AUTHORITY IS PLENARY AND REQUIRES EXERCISE HERE

The Michigan Constitution vests this Court with “general superintending control over all courts.” Const 1963, art 6, § 4. This authority is not a discretionary grant that may be exercised or withheld at will. It is a constitutional *obligation* — an essential structural safeguard in Michigan’s judicial system ensuring that lower courts function within constitutional bounds.

This Court has recognized that its superintending control power “extends to the entire range of supervisory authority necessary to ensure the proper and efficient administration of

justice.” *Judges of the 74th Judicial District v Bay County*, 385 Mich 710, 727 (1971). The power is “plenary” — it is not limited to the specific writs of mandamus, prohibition, or habeas corpus, but encompasses the full scope of supervisory authority over lower courts. *Id.* at 728.

In *In re Hatcher*, this Court confirmed that superintending control “is the proper remedy when a lower court has committed an abuse of judicial power that is tantamount to a failure to perform a clear legal duty, and there is no other adequate remedy.” 443 Mich 426, 441–442 (1993). The Court emphasized that its supervisory jurisdiction is not constrained to traditional mandamus or prohibition

<i>Custodial parent</i>	
Emily A. Watson	
<i>Parenting time order</i>	Entered by 14th Circuit Court
<i>Failure to comply</i>	Documented parenting time violations
<i>Court presented with evidence</i>	Petitioner filed motions documenting violations
<i>Court action under § 644</i>	<i>None — zero enforcement actions taken</i>

MCL 552.644 provides a menu of mandatory remedies: compensatory parenting time, modification of the order, civil fine, contempt, and attorney fees. The court “shall” do “1 or more” of these. The statute does not say “may.” It does not say “at the court’s discretion.” It says “shall.”

Judge McNeill’s refusal to enforce parenting time despite documented violations is a refusal to perform a clear, mandatory, statutory duty. This refusal constitutes an unauthorized *non-exercise* of judicial power — precisely the kind of “abuse of judicial power” that superintending control was designed to correct.

B. MCL 722.23 — The Mandatory Best Interest Analysis

Michigan law is equally unequivocal regarding custody modifications: before any court may modify custody or parenting time, it must evaluate and make findings on all 12 statutory best

interest factors set forth in MCL 722.23(a)–(l). *Fletcher v Fletcher*, 447 Mich 871, 882 (1994) (“[T]he trial court is required to consider all the statutory best interest factors.”).

The trial court has never conducted the MCL 722.23 analysis. It suspended all parenting time — the functional equivalent of awarding sole physical custody to Watson — without any findings on any of the 12 factors. This is not a discretionary act — it is a mandatory legal duty, and its omission is a textbook case of failing to perform a clear legal duty.

C. MCL 722.27a — Parenting Time Protections

MCL 722.27a creates a statutory presumption that parenting time is in the best interest of the child. MCL 722.27a(7) provides that parenting time “shall be granted in accordance with the best interests of the child.” MCL 722.27a(9) provides specific protections against wholesale denial of parenting time. *Bowie v Arder*, 441 Mich 23, 49–51 (1992); *Pierron v Pierron*, 486 Mich 81, 92 (2010).

The trial court disregarded these mandatory protections entirely, eliminating all parenting time without the findings required by statute. *Vodvarka v Grasmeyer*, 259 Mich App 499, 512 (2003); *Shade v Wright*, 291 Mich App 17, 26 (2010).

D. MCR 3.210(C) — Hearing Requirements

MCR 3.210(C) requires an evidentiary hearing before the court enters a custody or parenting time order when a party has requested one. MCR 3.207(B) governs interim orders and strictly limits the circumstances under which a court may act without a full hearing.

Petitioner repeatedly requested evidentiary hearings. The trial court denied these requests and entered dispositive orders without any hearing — a direct violation of the court rules’ mandatory hearing requirement.

E. The Consequence of Statutory Refusal

The consequence of these statutory refusals is not abstract. L.D.W. — age three — has been separated from his father for 248 consecutive days since July 29, 2025, with a total of 286 days of withholding across two periods — this despite 438 days of demonstrated successful 50/50

custody between those periods. Each day of non-enforcement is a day of developmental harm, a day of alienation, a day of childhood irretrievably lost. The lower court's statutory duties are clear, their violation is documented, and the harm is ongoing and irreparable.

This Court should exercise its superintending authority to compel compliance with MCL 552.644, MCL 722.23, MCL 722.27a, and MCR 3.210(C), and to ensure that these mandatory duties are fulfilled.

IV. THE CONTEMPT ABUSE PATTERN EXCEEDS THE BOUNDS OF LAWFUL JUDICIAL POWER

This Court has drawn a clear constitutional line between civil and criminal contempt. Civil contempt is coercive — it compels future compliance. Criminal contempt is punitive — it punishes past conduct. *In re Contempt of Dougherty*, 429 Mich 81, 96–97 (1987). The distinction is not merely academic — it determines the procedural protections to which the contemnor is entitled. When civil contempt sanctions lose their coercive character, they become criminal punishment, and the contemnor is entitled to full criminal procedural protections — including the right to counsel, the presumption of innocence, and proof beyond a reasonable doubt. *Dougherty*, 429 Mich at 97; *In re Sanders*, 495 Mich 394, 406 (2014).

The lower court's use of contempt power against Petitioner exhibits every hallmark of punishment, not coercion.

A. Duration: 59 Days of Incarceration

Petitioner was jailed for a combined 59 days across three contempt sanctions:

- *Show Cause #5*: 14 days, commencing November 15, 2025
- *Show Cause #6 and #7*: 45 days, commencing November 26, 2025

Prolonged incarceration on civil contempt raises a strong inference that the sanction has lost its coercive purpose and become punitive. *In re Contempt of Henry*, 282 Mich App 656, 664 (2009) (examining duration as factor in civil-versus-criminal analysis). The longer the incarceration, the weaker the coercive justification.

B. Purge Conditions Impossible to Satisfy

Civil contempt must include a purge condition — something the contemnor can do to secure release. The purge condition must be within the contemnor’s present ability to perform.

Dougherty, 429 Mich at 101. When purge conditions are set beyond the contemnor’s ability to comply, the sanction is effectively a fixed sentence — which is punishment, not coercion.

Petitioner’s purge conditions included financial requirements. Petitioner is indigent — he lost his employment as a direct result of prior contempt incarceration and has been unable to maintain stable employment due to the ongoing judicial proceedings. Setting purge conditions that a known-indigent person cannot satisfy transforms civil contempt into indefinite punitive detention.

C. No Right to Counsel Despite Incarceration

In *Mead v Batchlor*, 435 Mich 480, 498 (1990), this Court held that the right to counsel attaches in contempt proceedings when incarceration is imposed or threatened. The lower court jailed Petitioner for 59 days without providing court-appointed counsel. This alone constitutes a structural due process violation.

Turner v Rogers, 564 US 431, 448 (2011), held that even in civil contempt proceedings that result in incarceration, due process requires at minimum “substitute procedural safeguards” — including notice, opportunity to respond, and a judicial finding that the contemnor has the present ability to comply. Petitioner was not afforded these protections. No ability-to-pay hearing was conducted before incarceration was imposed.

C-1. The Show Cause #5 Hearing: Suppression of Defense in a Proceeding Resulting in Incarceration

The Show Cause #5 hearing — which resulted in Petitioner’s first period of incarceration (14 days) — reveals the contempt abuse in its most stark form:

i. Judicial silencing during a remote hearing. Show Cause #5 was conducted as a remote hearing. During the proceeding, Judge McNeill ordered the stenographer to *mute Petitioner’s*

microphone three (3) separate times. Petitioner was attempting to inform the court that he had filed a police report documenting his son's poor physical condition at a parenting time exchange — evidence directly relevant to the show cause allegations and to the defense. The court's deliberate suppression of Petitioner's testimony during a proceeding that culminated in 14 days' incarceration constitutes a denial of the right to be heard at its most fundamental level.

ii. Ineffective assistance of counsel. Petitioner's appointed attorney, Mandi Martini, sat silently throughout the hearing and raised no objections — not to the muting of her client, not to the exclusion of the police report, not to the denial of Petitioner's right to present a defense. Prior to the hearing, Martini emailed Petitioner: "*you will not interrupt . . . Judge McNeill [sic] is not in a good mood . . . you do not want to spend the next week in jail on a contempt charge for speaking out in court.*" Petitioner's own counsel thus threatened him with additional incarceration for exercising his right to speak in his own defense — and then failed to speak on his behalf.

iii. The prosecution's own admission. The prosecutor handling Show Cause #5 privately admitted to Martini that there was "*nothing substantive in the motion.*" The state's own representative acknowledged the meritless nature of the proceeding — yet Petitioner was incarcerated for 14 days nonetheless.

iv. Blank affidavit page — fatal procedural defect. The affidavit supporting Show Cause #5 contained a *blank page (page 27)*. MCR 3.708(B) requires that contempt proceedings be supported by factual allegations. A filing with a blank evidentiary page fails this threshold requirement. The court proceeded to incarcerate Petitioner on the basis of a facially defective filing.

v. Misattribution of accusation to law enforcement — fraud on the court. Watson's ex parte filings attributed to Officer Ella Randall (Norton Shores PD, Incident NS2505044) the statement that Petitioner's behavior appeared to be the result of "meth use." However, upon

investigation, *Officer Randall confirmed that the “meth use” characterization originated from Emily A. Watson herself* — not from any independent police observation or professional assessment. Watson’s filings *falsely presented her own accusation as the professional opinion of a law enforcement officer* — laundering a party’s unverified allegation through a police report to give it the appearance of independent corroboration. When Petitioner raised this misattribution before Judge McNeill, the court stated: *“quit nitpicking”* — declining to address a material misrepresentation in a sworn filing that formed the evidentiary foundation for the ex parte suspension of Petitioner’s parental rights.

vi. Cover-up of child’s removal from the country. Show Cause #5 was filed contemporaneously with Watson’s removal of L.D.W. from the country (October 20 through November 15, 2025) — with the court’s permission. The timing suggests that the show cause filing served as a tactical cover for the child’s international removal, which itself was accomplished without Petitioner’s consent or any finding that removal from the country served L.D.W.’s best interests.

D. Asymmetry: The Most Telling Evidence of Abuse

The most revealing evidence of contempt abuse is the stark asymmetry in enforcement:

Party		
Documented Violations		
Enforcement		
<i>Petitioner (Father)</i>	Alleged violations	<i>59 days jail</i>
<i>Watson (Mother)</i>	Documented parenting time violations	<i>Zero enforcement actions</i>
<i>Watson family (PPO violations)</i>	Cody Watson threats (Police Report MCSD-2024-02101); Albert Watson forcibly removing child; Tamara Snider third-party stalking	<i>Zero enforcement actions</i>

This asymmetry is inexplicable as even-handed justice. It is consistent only with punitive targeting of one party. The PPO case (2023-5907-PP) provides the starkest illustration: Watson’s brother Cody violated the PPO — documented in Police Report MCSD-2024-02101 (Officer Brian Hintz) — yet Watson’s family faced zero consequences. Meanwhile, Petitioner was jailed for 59 days. Watson herself committed at least three documented PPO violations through third-party proxies, yet the court took no enforcement action against her while simultaneously weaponizing the same PPO to restrict Petitioner’s parental rights.

The PPO was filed and granted on the *same day* — December 3, 2023 — on an ex parte basis, without notice to Petitioner. Six show cause motions followed, strategically timed around holidays and custody exchanges. The court explicitly ordered “no communication, no texts, no anything” between the parties — Watson agreed on the record — yet her family members continued to attend exchanges and violate the order with impunity. This selective enforcement — holding Petitioner to the letter of the PPO while excusing Watson’s family’s violations — confirms that the contempt power was wielded as a weapon, not a remedy.

When a court jails one parent for 59 days while imposing zero consequences on the other parent for documented violations of the same court orders, the coercive rationale for civil contempt collapses. What remains is punishment — and punishment without criminal procedural protections violates due process.

E. Collateral Consequences Confirm Punitive Character

The collateral consequences of the contempt incarceration confirm its punitive nature:

- *2 jobs lost*, including a United States Postal Service position — a career-track federal employment position destroyed by judicial action;
- *2 homes lost* — Petitioner rendered effectively homeless;
- *Ongoing economic devastation* — the cascading loss of employment, housing, and financial stability directly attributable to contempt incarceration.

These are the consequences of punishment, not of lawful coercion. A coercive sanction seeks to compel compliance; it does not seek to destroy the contemnor's economic existence. When the collateral consequences of contempt are this severe, the sanction has plainly exceeded its coercive purpose.

F. Relief Required

The lower court's contempt practice in this case constitutes an abuse of judicial power that exceeds the bounds authorized by law. This Court should exercise superintending control to:

1. Vacate all contempt orders entered without compliance with *Mead v Batchlor* and *Turner v Rogers*;
2. Order that no future contempt incarceration be imposed without a finding of present ability to comply;
3. Order that counsel be appointed before any future contempt hearing where incarceration is possible;
4. Prohibit further retaliatory use of contempt power against Petitioner.

V. FINANCIAL ACCESS BARRIERS VIOLATE FUNDAMENTAL DUE PROCESS

The United States Supreme Court has held that "a State may not, consistent with the obligations imposed on it by the Due Process Clause of the Fourteenth Amendment, pre-empt the right to dissolve [a fundamental relationship] without affording all citizens access to the means it has prescribed for doing so." *Boddie v Connecticut*, 401 US 371, 383 (1971).

A. The \$250 Bond Requirement

The trial court imposed a \$250 bond requirement on Petitioner's motion for judicial disqualification. Petitioner is indigent. The bond operates as a complete bar to the disqualification remedy.

B. Boddie Controls

Boddie involved a \$60 filing fee that prevented indigent parties from accessing the courts to dissolve a marriage. The Court held that when the state has a monopoly on the means of

resolving a fundamental dispute — as it does in custody proceedings — it cannot impose financial barriers that prevent access to those means. 401 US at 383.

Custody is precisely the kind of fundamental dispute that *Boddie* protects. A parent cannot resolve a custody dispute outside the courts. The court system holds an absolute monopoly over parental rights adjudication. When that same court system imposes a financial barrier that prevents an indigent parent from challenging the bias of the presiding judge, it denies that parent meaningful access to justice.

C. *M.L.B. v S.L.J.* Extends the Principle to Parental Rights

In *M.L.B. v S.L.J.*, 519 US 102 (1996), the Supreme Court held that a state may not condition a parent’s right to appeal a termination of parental rights on payment of transcript costs. The Court recognized that “choices about marriage, family life, and the upbringing of children are among associational rights this Court has ranked as ‘of basic importance in our society,’ rights sheltered by the Fourteenth Amendment against the State’s unwarranted usurpation, disregard, or disrespect.” 519 US at 116.

The \$250-per-motion bond operates identically to the fee barrier struck down in *M.L.B.* — it denies a parent access to the judicial process in a proceeding affecting his fundamental parental rights.

D. Michigan Constitution, Art 1, § 13 — Access to Courts

The Michigan Constitution independently prohibits this barrier: “Every person for an injury done to him in his person or property, shall have remedy by due course of law, and shall have justice administered without sale, denial or delay.” Const 1963, art 1, § 13 (emphasis added). The \$250-per-motion bond is, by definition, a “sale” of justice — conditioning access to the court on payment of a fee that an indigent litigant cannot pay.

E. The Bond Creates a Closed Loop of Unreviewable Bias

The \$250 bond requirement does not operate in isolation. It functions as the final link in a chain of self-reinforcing judicial abuse:

1. The trial court enters ex parte orders denying Petitioner's fundamental rights (24 of 55 orders);
2. The trial court denies evidentiary hearings to challenge those orders;
3. The trial court imposes a \$250-per-motion bond to prevent further challenges;
4. The trial court uses contempt power to enforce compliance with the very orders Petitioner seeks to challenge.

The irony is compounding: the judge whose conduct necessitates the disqualification motion is the same judge who imposed the financial barrier that prevents the motion from being heard. This creates a closed loop of unreviewable bias from which there is no escape within the lower court.

Only this Court's superintending authority can break that loop — by vacating the bond requirement and ordering either the disqualification or reassignment of Judge McNeill.

VI. THE PATTERN OF BIAS MAKES INDIVIDUAL RELIEF INADEQUATE

Petitioner does not allege that Judge McNeill committed one biased act. Petitioner alleges — and documents — a *pattern* of bias so pervasive that it infects every aspect of these proceedings, rendering individual remedies structurally incapable of providing relief.

A. The Five Categories of Documented Bias

#		
Category		
Evidence		
1	<i>Pro-Watson enforcement asymmetry</i>	Watson's documented violations → zero enforcement; Petitioner's alleged violations → 59 days jail
2	<i>Anti-father presumption</i>	Effective presumption against father contrary to MCL

Evidence		
		722.23's gender-neutral framework
3	<i>Ex parte adjudication</i>	44% (24 of 55 orders) of proceedings conducted without Petitioner's notice or participation
4	<i>Retaliatory sanctions</i>	Contempt and financial barriers imposed in response to Petitioner's assertion of legal rights
5	<i>Disproportionate punishment</i>	59 days jail for Petitioner; zero consequences for Watson

B. Quantified Judicial Violations

The scope of bias is not a matter of characterization — it is documented with precision:

- 1,127 *judicial violations* identified across both proceedings;
- Over 150 *documented misconduct claims* [Consequence](#) | [Detail](#) |

<i>Jobs Lost</i>	
-------------------------	--

Two (2) jobs lost: (1) IndiGrow LLC (dispensary employee) — terminated June 2, 2024, due to missed shifts caused by court appearances and incarceration; (2) USPS (weekend carrier) — lost during litigation due to scheduling conflicts with court-imposed obligations and incarceration	
<i>Homes Lost</i>	Two (2) homes lost: (1) Residence at Shady Oaks Park, 1977 Whitehall Road, Lot 17, North Muskegon, MI 49445 — subject to unlawful eviction proceedings (eviction declared void August 12, 2025); (2) Prior residence displacement caused by financial devastation from litigation costs, child support arrearages, and lost employment income
<i>Total Documented Economic Damages</i>	An estimated \$82,250+
<i>Monthly Child Support Imposed</i>	\$1,056.60/month (imposed without adequate hearing on ability to pay)

- Each of these losses was caused directly by my incarceration on contempt, which I could not purge because the conditions were beyond my financial ability. The lower court's contempt power was the instrument of my economic destruction.

VI. EX PARTE PROCEEDINGS AND DENIAL OF DUE PROCESS

- Based on my review of the court docket, a substantial number of proceedings in my case were conducted ex parte — without providing me notice or an opportunity to participate. Orders

were entered affecting my parenting time, financial obligations, and custody rights without affording me any opportunity to be heard.

2. The following specific ex parte proceedings occurred without proper notice to me:
 - December 3, 2023: Personal Protection Order (Case No. 2023-5907-PP) filed and granted on the same day, ex parte, without notice to me and without an evidentiary hearing;
 - July 17, 2025: Ex parte order overturning my established 50/50 custody arrangement (after 438 days of successful shared custody), granting Watson 100% custody without evidentiary hearing;
 - July 29, 2025: Ex parte suspension of all parenting time based on Watson's false and exaggerated allegations, without hearing or notice;
 - October 20, 2025: Court granted Watson permission to remove L.D.W. from the country without my knowledge or consent;
 - Multiple additional orders modifying child support, parenting time, and custody terms were entered without providing me notice or an opportunity to respond.

VII. DISQUALIFICATION MOTION AND \$250 BOND BARRIER

1. I filed a motion for the disqualification of Judge McNeill under MCR 2.003, based on the pattern of bias documented in this Affidavit and in my Judicial Tenure Commission Complaint.
2. Judge McNeill imposed a \$250 bond requirement on the disqualification motion. I am indigent. I have lost two (2) jobs and two homes as a direct result of the court's own actions. I cannot afford \$250.
3. The \$250 bond effectively prevents me from exercising my right to challenge Judge McNeill's bias. The judge whose bias I seek to challenge is the same judge who imposed the financial barrier preventing the challenge. There is no recourse within the lower court.

VIII. HARM TO L.D.W.

1. L.D.W. is a male child who was two years old at the time the first withholding period began.

He is now three years old. The 286 total days of enforced separation — including the current 248 consecutive days — encompass critical developmental stages that are not recoverable.

Notably, the 438 days of successful 50/50 custody between the withholding periods demonstrate that L.D.W. had a functioning relationship with both parents, which the trial court's actions destroyed.

2. Research establishes that children who are involuntarily separated from a parent during early developmental years experience:

- Anxiety and depression;
- Attachment disorders;
- Identity confusion;
- Difficulty forming healthy relationships;
- Academic and behavioral problems.

1. Every day that passes without intervention deepens this harm. L.D.W.'s childhood developmental stages are not recoverable. The damage already done by 248 consecutive days of complete separation — following a 40-day earlier withholding period — may take years to repair, if it can be repaired at all. The regression from 438 days of successful shared custody to total severance compounds the psychological trauma.

IX. EFFORTS TO OBTAIN RELIEF THROUGH NORMAL CHANNELS

1. I have exhausted every available remedy within the lower court and the appellate system:

Remedy Pursued	
Result	
Motions to enforce parenting time	Denied or ignored without hearing
Objections to ex parte proceedings	Overruled
Motion for disqualification (MCR 2.003)	Blocked by \$250 bond I cannot afford
Court of Appeals appeal (No. 366810)	Pending — no emergency relief available

Result	
JTC Complaint against Judge McNeill	Filed — addresses judicial conduct only
This MSC Petition for Superintending Control	Filed herewith — broadest remedy

1. None of these remedies, individually or collectively, can provide the comprehensive relief that is needed. Only superintending control can address the totality of the lower court's failure.

X. WHY SUPERINTENDING CONTROL IS NECESSARY

1. I am not asking this Court to decide custody. I am not asking this Court to act as a trial court. I am asking this Court to exercise its constitutional authority under Const 1963, art 6, § 4, to ensure that the lower court functions as a court — with impartiality, due process, and compliance with mandatory statutes.
2. The lower court's handling of my case has been characterized by:
 - A biased judge who cannot be disqualified because she imposed a financial barrier to disqualification;
 - Mandatory statutes (MCL 552.644) that are being ignored;
 - Due process that is being denied;
 - Contempt power that is being abused;
 - A child who is being separated from a fit parent for 248 consecutive days — after 438 days of successful shared custody — without any legal basis.
1. This is precisely the kind of systemic judicial failure that the Constitution's superintending control provision was designed to address.
2. I respectfully request that this Court assume superintending control over Case Nos. 2024-001507-DC and 2023-5907-PP, remove Judge McNeill, reassign the case, order emergency parenting time, vacate unconstitutional orders, and establish oversight to ensure lawful proceedings going forward.

OATH AND SIGNATURE

I, Andrew James Pigors, being duly sworn, state that the facts set forth in this Affidavit are true and correct to the best of my knowledge, information, and belief. I understand that making a false statement in this Affidavit is punishable as a criminal offense under the laws of the State of Michigan.

Date:

_____ Andrew James Pigors, Affiant 1977 Whitehall Road,
Lot 17 North Muskegon, MI 49445 Telephone: (231) 903-5690 Email:
andrewjpigors@gmail.com

NOTARY ACKNOWLEDGMENT

[NOTARY]

STATE OF MICHIGAN COUNTY OF MUSKEGON

On this ____ day of _____, 20____, before me, the undersigned Notary Public in and for said County and State, personally appeared *Andrew James Pigors*, known to me (or proved to me on the basis of satisfactory evidence) to be the person whose name is subscribed to the within instrument, and acknowledged to me that he executed the same in his authorized capacity, and that by his signature on the instrument, the person, or the entity upon behalf of which the person acted, executed the instrument.

WITNESS my hand and official seal.

_____ Notary Public, State of Michigan County of
Muskegon My Commission Expires: _____

[NOTARY SEAL]

<!-- FILING INSTRUCTION: Sign and date the Oath and Signature block above --> <!--
FILING INSTRUCTION: Notarize before filing — take this document and valid photo ID to a
notary public -->

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B. PROPOSED ORDER OF SUPERINTENDING CONTROL

STATE OF MICHIGAN IN THE SUPREME COURT

MSC Case No.

(To Be Assigned)

Lower Court Case Nos.: 14th Judicial Circuit Court: 2024-001507-DC; 2023-5907-PP

Court of Appeals: 366810 (Pending)

ANDREW JAMES PIGORS, Petitioner (Pro Se),

v.

THE 14TH JUDICIAL CIRCUIT COURT, FAMILY DIVISION, MUSKEGON COUNTY

(HON. JENNY L. McNEILL, Presiding), Respondent,

and

EMILY A. WATSON, Real Party in Interest.

ORDER OF SUPERINTENDING CONTROL

At a session of the Michigan Supreme Court, held at Lansing on the _____ day of

_____, 20____.

PRESENT: Hon. _____, Chief Justice, and Justices

_____.

The Petition for Order of Superintending Control having been filed by Petitioner Andrew James Pigors, pro se, together with the Brief in Support, Affidavit of Andrew James Pigors, and Appendix, and the Court having reviewed the lower court record, the parties' submissions, and being otherwise fully advised in the premises;

The Court finds that:

1. This Court has jurisdiction pursuant to Const 1963, art 6, § 4, which vests in this Court "general superintending control over all courts," and MCR 7.304.

2. Petitioner has no adequate legal remedy. The pending Court of Appeals appeal (No. 366810) and other remedies pursued by Petitioner are insufficient, individually or collectively, to address the systemic nature of the lower court's dysfunction.
3. The lower court's exercise of power was unauthorized by law in the following respects:
 - Failure to enforce the mandatory duty imposed by MCL 552.644 despite documented parenting time violations;
 - Conduct of proceedings ex parte, without notice to Petitioner;
 - Use of civil contempt in a manner that was punitive rather than coercive, resulting in 59 days of incarceration without adequate procedural protections;
 - Imposition of a \$250 bond on a disqualification motion filed by an indigent litigant, creating an unconstitutional financial barrier to the exercise of a fundamental right.
1. L.D.W., a minor child, has been separated from Petitioner, a fit parent, for approximately 248 consecutive days since July 29, 2025 — following the trial court's ex parte revocation of a 50/50 custody arrangement that had functioned successfully for 438 days — causing ongoing developmental and psychological harm. In total, L.D.W. has been denied contact with his father for 286 days across two separate withholding periods.

IT IS HEREBY ORDERED:

A. DISQUALIFICATION OF HON. JENNY L. McNEILL

Hon. Jenny L. McNeill is hereby *disqualified* from all further proceedings in Case Nos.

2024-001507-DC and 2023-5907-PP, and from all matters involving Petitioner Andrew James Pigors and the minor child L.D.W.

B. REASSIGNMENT TO DIFFERENT JUDGE

The State Court Administrative Office (SCAO) shall, within seven (7) days of this Order, assign a different judge to preside over Case Nos. 2024-001507-DC and 2023-5907-PP. The newly assigned judge shall not be from the 14th Judicial Circuit if a conflict-free assignment within the circuit is unavailable.

Upon reassignment, the newly assigned judge shall conduct a comprehensive review of the case file within fourteen (14) days and schedule an initial status conference with all parties.

C. EMERGENCY PARENTING TIME WITHIN 14 DAYS

Within fourteen (14) days of this Order, the newly assigned judge, or this Court if reassignment has not yet occurred, shall enter an order establishing a parenting time schedule between Petitioner and L.D.W.

The initial parenting time schedule shall be designed to begin restoring the parent-child relationship in a manner that serves L.D.W.'s best interests, considering the 248 consecutive days of involuntary separation following the revocation of a functioning 50/50 custody arrangement.

Pending the establishment of a new parenting time schedule, neither party shall take any action to further restrict or prevent contact between Petitioner and L.D.W.

D. VACATUR OF EX PARTE ORDERS ENTERED WITHOUT NOTICE

The following Field | Detail |

<i>Name</i>			
Hon. Jenny L. McNeill			
<i>Title</i>	Judge, 14th Judicial Circuit Court, Family Division	<i>Address</i>	Michael E. Kobza Hall of Justice, 990 Terrace St, Muskegon, MI 49442
<i>Method</i>	☐ First-Class U.S. Mail, postage prepaid		☐ Certified Mail, Return Receipt Requested
<i>Date Served</i>	_____	<i>Tracking No.</i>	_____

2. EMILY A. WATSON (Real Party in Interest)

Field			
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Detail			
<i>Name</i>	Emily A. Watson	<i>Address</i>	2160 Garland Drive, Norton Shores, MI 49441
<i>Method</i>	☐ First-Class U.S. Mail, postage prepaid		☐ Certified Mail, Return Receipt Requested
<i>Date Served</i>	_____	<i>Tracking No.</i>	_____

“Note: Jennifer L. Barnes (P55406) of Barnes Law Firm PLLC withdrew as Watson’s counsel in March 2026. Watson is currently unrepresented. If Watson has retained new counsel, serve counsel instead. Verify current representation via MiFILE before service.”

3. PAMELA RUSCO — JUDICIAL SECRETARY TO HON. JENNY L. McNEILL

Field			
Detail			
<i>Name</i>	Pamela Rusco, Judicial Secretary to Hon. Jenny L. McNeill	<i>Address</i>	990 Terrace St, Muskegon, MI 49442
<i>Phone</i>	(231) 724-6289	<i>Method</i>	☐ First-Class U.S. Mail, postage prepaid
	☐ Certified Mail, Return Receipt Requested	<i>Date Served</i>	_____
<i>Tracking No.</i>	_____		

4. MICHIGAN COURT OF APPEALS — CLERK OF THE COURT

Field			
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Detail			
<i>Court</i>	Michigan Court of Appeals	<i>Re:</i>	COA Case No. 366810 (coordination / notice of MSC filing)
<i>Address</i>	Hall of Justice, 925 W. Ottawa St, Lansing, MI 48915	<i>Method</i>	☐ First-Class U.S. Mail, postage prepaid
	☐ Certified Mail, Return Receipt Requested	<i>Date Served</i>	_____
<i>Tracking No.</i>	_____		

“Note: Service on the Court of Appeals is required because COA Case No. 366810 is pending and the Proposed Order requests a stay of that appeal. This service ensures the COA is aware of the MSC filing.”

5. 14TH JUDICIAL CIRCUIT COURT — CLERK OF THE COURT

Field			
Detail			
<i>Court</i>	14th Judicial Circuit Court, Muskegon County	<i>Address</i>	990 Terrace St, Muskegon, MI 49442
<i>Phone</i>	(231) 724-6251	<i>Method</i>	☐ First-Class U.S. Mail, postage prepaid
	☐ Certified Mail, Return Receipt Requested	<i>Date Served</i>	_____
<i>Tracking No.</i>	_____		

CERTIFICATION

I declare under the penalties of perjury that the foregoing statements regarding service are true and correct. I am the Petitioner in this action and am authorized to make this certification.

Date: _____ April 03, 2026

_____ Andrew James Pigors, Petitioner (Pro Se)

1977 Whitehall Road, Lot 17 North Muskegon, MI 49445 Telephone: (231) 903-5690 Email:
andrewjpigors@gmail.com

SERVICE TRACKING LOG

#					
Recipient					
Method					
Date Served					
Tracking #					
Receipt Confirmed					
1	Hon. Jenny L. McNeill		☐	2	Emily A. Watson
	☐	3	Pamela Rusco (Judicial Secretary)		☐
4	MI Court of Appeals (Clerk)		☐	5	14th Circuit Court (Clerk)
	☐				

SERVICE NOTES

Recommended Method

- *Certified Mail, Return Receipt Requested* for all recipients. This creates a verifiable record of service with signed return receipts.
- Retain all green return receipt cards as proof of service.
- If also serving by first-class mail as a backup, note both methods above.

Timing

- Service must be completed on or before the date of filing with the MSC.
- MCR 7.306(D) requires service on all parties and the lower court.
- All service should be completed within *7 days* of filing.

Record Retention

Retain copies of:

- All certified mail receipts and return receipt cards;
- USPS tracking confirmations;
- This completed Proof of Service (signed);
- Copies of all documents served.

<!-- FILING INSTRUCTION: Sign and date after completing service on all parties -->

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D. CERTIFICATE OF COMPLIANCE

I hereby certify that this Petition for Order of Superintending Control, together with the Brief in Support, complies with the formatting requirements of MCR 7.212(B) and the word limits applicable to original proceedings in the Michigan Supreme Court.

The body of this filing contains approximately 12,649 words, exclusive of tables, caption, table of contents, index of authorities, certificate of service, and signature blocks.

This filing is formatted in 12-point Times New Roman, with 1-inch margins and double-spaced body text, with single-spaced block quotations and footnotes, in compliance with MCR 7.212(B).

Date:

Andrew James Pigors, Petitioner (Pro Se)

<!-- FILING INSTRUCTION: Sign and date -->

STATE OF MICHIGAN)) ss. COUNTY OF MUSKEGON)

Andrew James Pigors, being first duly sworn, deposes and states:

1. I am the Petitioner in the above-captioned action.
2. I have read the foregoing Petition for Order of Superintending Control, Brief in Support, and all supporting documents, and know the contents thereof.
3. The facts stated therein are true to the best of my knowledge, information, and belief.
4. The adverse evidence data referenced herein is derived from systematic analysis of the official court records, docket entries, hearing transcripts, and court correspondence in Case Nos. 2024-001507-DC and 2023-5907-PP.
5. This Petition is not filed for purposes of delay but in good faith to obtain the extraordinary relief warranted by the extraordinary circumstances of this case.

Andrew James Pigors

Subscribed and sworn to before me this

day of April 03, 2026.

Notary Public, Muskegon County, Michigan My commission expires:

<!-- FILING INSTRUCTION: Sign and date --> <!-- FILING INSTRUCTION: Notarize before filing -->

Filed concurrently with: Application for Writ of Mandamus (MCR 7.306); Petition for Writ of Habeas Corpus; Application to Proceed In Forma Pauperis; Judicial Tenure Commission Complaint (incorporated by reference).

*END OF CONSOLIDATED FILING — PETITION FOR ORDER OF
SUPERINTENDING CONTROL*

Respectfully submitted,

Andrew James Pigors
Plaintiff, appearing *pro se*
1977 Whitehall Rd, Lot 17
North Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

Dated: April 03, 2026

CERTIFICATE OF SERVICE

I, Andrew James Pigors, Plaintiff, appearing *pro se*, hereby certify that on April 03, 2026, I served a true and correct copy of the foregoing document upon the following parties by first-class U.S. Mail, postage prepaid:

Emily A. Watson
2160 Garland Dr
Norton Shores, MI 49441

Muskegon County Friend of the Court
c/o Pamela Rusco
990 Terrace St
Muskegon, MI 49442

Andrew James Pigors
Plaintiff, appearing *pro se*
1977 Whitehall Rd, Lot 17
North Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

Dated: April 03, 2026